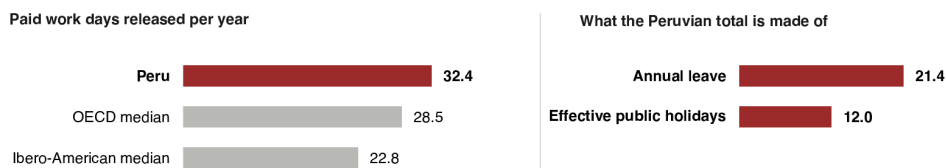


Statutory public holidays and annual leave in Peru, Ibero-America and the OECD

Kristian López Vargas

Key messages

Peru's statutory rest floor is above both the Ibero-American and the OECD median. The total, however, is composed differently against each benchmark.



Peru: 32.4 days, 12.5 % of its working year. The two components do not add: holidays inside the leave period are counted against it. The total is an expected value, not an enforceable minimum.

Figure 1: Level and composition of statutory rest in Peru, 2026 cut. The total is an expected value under the uniform-placement assumption, not an enforceable minimum; the section «Why the total is not the sum» develops this. *Source:* authors' calculations; the figures are the same ones that feed the exhibits in this document.

- **Level.** A reference worker in Peru is guaranteed 32.4 paid work days released per year, equivalent to 12.5 % of their working year. The Ibero-American median is 22.8 days and the OECD median 28.5.
- **Composition.** The gap does not come from the same entitlement in both cases. Against the OECD, Peru's annual leave entitlement is equivalent —4.29 weeks against 4.00— and the distance is set by public holidays: 12 expected effective against a median of 8. Against Ibero-America the reverse holds. Public holidays and annual leave are distinct instruments and are not interchangeable.
- **Why these figures differ from the familiar ones.** The available comparative indices do not uniformly preserve the unit in which each statute counts days, and therefore cannot answer this comparison directly — particularly for statutes written in calendar days, as Peru's is.
- **Implication.** Before debating whether the statutory floor should rise or fall, the diagnosis has to separate the two entitlements and be complemented with evidence on compliance and on effective take-up, which this work does not measure.

*Scope of these figures: they describe the **entitlement the law grants** a reference worker —twelve months of continuous service, formal private sector—; they do not measure take-up, compliance, well-being or productivity. Each observation is a **reference jurisdiction, not a national average**.*

Keywords: public holidays · annual leave · statutory rest · cross-country comparison · Peru · Ibero-America · OECD. **JEL codes:** J81 · J88 · K31 · C81.

For researchers. This dataset **does not replace** the existing comparative series and does not seek to: they are annual, cover half a century, and this is two cuts. What it contributes is different and complementary — a recent legal recoding that preserves, cell by cell, the **statutory counting unit**, the seniority schedule, the placement rule, the boundary between the two entitlements and provenance down to the statute. It serves to **audit and correct** the existing series where their aggregation loses information, and to extend observation to the current cut. Anyone who needs a long panel should keep using those; anyone who needs to know what kind of day is being counted cannot.

Executive summary

What we found

We measured, by reading the statutes, the rest that the law guarantees in 47 jurisdictions of Ibero-America, the OECD and the accession countries, with two entitlements in the same design: paid public holidays and minimum annual leave.

There are two time cuts, 2016 and 2026, and their strength differs by entitlement. For public holidays the 2016 cut is verified against source in 26 units and partly in 11. For annual leave it is **confirmed in 41 of the 45 units with a recorded entitlement**, with 0 still assumed. The difference orders this whole work: «it was sought and confirmed unchanged» is not the same as «no amending statute was found», and that distinction is in the data, cell by cell.

The measure is the **released paid work day**: a day the reference worker would have worked and does not work, while being paid. A public holiday falling on their weekly rest releases nothing and does not count.

Peru sits above both reference medians. Its composition, by contrast, is atypical: the annual leave entitlement is in line with the OECD and the number of public holidays that actually release a work day is high.

Why it matters

Public debate on rest days usually rests on the number of holidays in the calendar or on comparative indices of labour regulation. Neither answers the question that matters for policy, and there is literature that lets us say why with precision.

What is known about the cost. The cleanest available estimate exploits an elegant source of variation: when a public holiday falls on a weekend and the statute does not substitute it, the country gains a working day quasi-randomly, with no change in the law.

The work exploiting that variation —Rosso and Wagner, across some two hundred countries— finds that **the cost of an additional public holiday is substantially lower than the naive calculation** —output divided by the working days of the year— because part of the activity shifts to other days and because hospitality and tourism raise their takings on precisely that day. The effect concentrates in manufacturing and does not appear in mining or agriculture. The same work reports fewer workplace accidents and a short-run rise in self-reported happiness in years with more transitory holidays.

This report does not reproduce that work's point magnitudes, and the omission is deliberate. Its repository is not accessible, the figures in circulation come from secondary sources, and this project's own literature review flagged that reference as pending primary capture before being cited. Citing a specific elasticity backed by a chain we cannot close would be the very defect this document charges to others. The sign and the order of magnitude are robust in the literature; the exact number will be published once the source is captured.

What is known about the effect on work. An annual leave mandate does not dissolve into compensating adjustments: Altonji and Oldham find that annual hours worked fall by close to a full week for each week of paid leave the law grants. The same work documents two facts this project assumed for construct reasons and which thereby gain external support: leave is determined by employer policy rather than by individual bargaining, and it is strongly tied to seniority.

Why composition is not an accounting detail. Alesina, Glaeser and Sacerdote attribute the bulk of the hours-worked gap between the United States and Europe to labour regulation, and rule out the usual alternatives —taxes explain little, and culture cannot explain it because Europeans worked more than Americans until the nineteen-sixties—. The mechanism they propose is a **social multiplier of**

leisure: the return to free time rises when more people take it at the same time.

That mechanism connects directly to this report's second result. If the value of rest depends on how many people rest at once, then **a public holiday and a day of annual leave are not interchangeable goods**, even though they count the same in the total: the holiday is synchronised by construction and the leave day is not. A jurisdiction that reaches its total through holidays is buying a different good from one that reaches it through leave, and the difference is not one of degree.

What the literature does not yet provide. There is no closed framework that allows one to say what the optimal level of statutory rest is for a given country. There are cost estimates, there is evidence of benefits in health and recovery, and there is a coordination mechanism that suggests multiple equilibria—which implies that cross-country comparison does not identify an optimum, because each country may sit at a different equilibrium—. This report does not fill that gap: it measures the statutory floor and makes it comparable, which is the precondition for any discussion about level.

And that is why the measurement defect matters. The calendar does not distinguish the holiday that releases a work day from the one that falls on weekly rest—and the identification strategy of the literature just cited depends on that distinction—. Comparative indices treat annual leave as a quantity of days without declaring **days of what**, and statutes do not count days of the same thing: Peru's grants calendar days, Germany's *Werktage*, Ontario's weeks. Without resolving that, neither cost nor benefit can be assigned to the right country.

What decision-makers should do differently

Separate the two instruments in the diagnosis. One and the same total may come from many holidays with median leave or from the reverse, and they are not the same good: holidays are dates common to everyone, leave is placed and its placement is negotiated.

Declare the counting unit when citing any international comparison, one's own or another's. It is the information that makes a figure recalculable.

Complement with evidence on compliance and take-up before concluding about level. The statutory floor is a necessary condition and does not describe what happens.

What it does not support concluding

This work describes law in force, not practice. **We do not claim to be more accurate** than the existing indices: we claim to be auditable and reproducible to the extent the reliability section documents. It does not identify causal effects, does not estimate an optimal level, and does not measure compliance or take-up. **Unverified absence is not absence:** a delta of zero between cuts may mean there was no reform or that none was sought.

Part I · How much rest the law guarantees

1. Peru's statutory floor sits above both of its benchmarks

Table 1. Paid work days released per year, 2026 cut

group	n	median rest, in days	median % of the working year	median effective holidays
Peru	1	32.4	12.5 %	12
Ibero-America	14	22.8	8.5 %	9

group	n	median rest, in days	median % of the working year	median effective holidays
OECD	32	28.5	11.0 %	8

Source: authors' calculations over 46 jurisdictions with complete measurement. The fraction is computed on each jurisdiction's own working year. *Note:* where the statute does not determine whether holidays falling inside the leave period extend it, the result is an interval and not a point: that is 17 jurisdictions.

Peru's position above both medians is stable across the available calculation conventions. Under the common five-day frame —which ignores actual working time and treats every jurisdiction alike— the Peruvian figure is 32.4 days.

The next exhibit gives the full set, unaggregated. It is published in the body and not in an annex on purpose: a reader who wants to check where Peru stands against a specific country —and not against a median— has to be able to do so without changing documents.

Table 2. Statutory rest in the 46 jurisdictions with complete measurement, 2026 cut

#	country	jurisdiction	group	week	leave	expected effective holidays	rest, in days	% of working year	# by fraction
1	United Kingdom	London	OECD	5	28.0	8.0	35.1–36.0	13.5 %	1
2	Austria	Vienna	OECD	5	25.0	10.4	35.4	13.6 %	2
3	Spain	Madrid	OECD	5	21.4	14.0	34.3–35.4	13.2 %	3
4	Poland	Warsaw	OECD	5	20.0	14.0	34.0	13.1 %	4
5	Bulgaria	Sofia	—	5	20.0	14.0	32.9–34.0	12.7 %	5
6	South Korea	Seoul	OECD	5	15.0	18.0	32.0–33.0	12.3 %	6
7	Peru	Lima	Ibero-America	5	21.4	12.0	32.4	12.5 %	7
8	Finland	Helsinki	OECD	5	25.0	7.3	32.3	12.4 %	8
9	Sweden	Stockholm	OECD	5	25.0	7.3	32.3	12.4 %	9
10	New Zealand	Auckland	OECD	5	20.0	12.0	32.0	12.3 %	10
11	Romania	Bucharest	—	5	20.0	11.6	31.6	12.1 %	11
12	Portugal	Lisbon	OECD	5	22.0	9.1	31.1	12.0 %	12
13	Australia	Sydney	OECD	5	20.0	11.0	31.0	11.9 %	13
14	Nicaragua	Managua	Ibero-America	5	21.4	9.1	30.6	11.8 %	14
15	Colombia	Bogotá	Ibero-America · OECD	5	12.5	18.0	29.6–30.5	11.4 %	15
16	Belgium	Brussels	OECD	5	20.0	10.0	30.0	11.5 %	16
17	Brazil	São Paulo	Ibero-America	5	21.4	8.9	29.6–30.3	11.4 %	17
18	Czechia	Prague	OECD	5	20.0	9.9	29.9	11.5 %	18
19	Norway	Oslo	OECD	5	20.8	8.6	29.4	11.3 %	19
20	Hungary	Budapest	OECD	5	20.0	8.7	28.7	11.0 %	20
21	Italy	Rome	OECD	5	20.0	8.9	28.2–28.9	10.8 %	21
22	Ireland	Dublin	OECD	5	20.0	8.9	28.2–28.9	10.8 %	22
23	Slovakia	Bratislava	OECD	5	20.0	8.4	28.4	10.9 %	23

#	country	jurisdiction	group	week	leave	expected effective holidays	rest, in days	% of working year	# by fraction
			median of the set				28.4	10.9 %	
24	Germany	Berlin	OECD	5	20.0	8.3	28.3	10.9 %	24
25	Switzerland	Zürich	OECD	5	20.0	7.6	27.0–27.6	10.4 %	25
26	Greece	Athens	OECD	5	20.0	6.7	26.7	10.3 %	26
27	Chile	Santiago	Ibero- America · OECD	5	15.0	11.0	25.4–26.0	9.8 %	27
28	France	Paris	OECD	5	25.0	0.7	25.6–25.7	9.9 %	28
29	Denmark	Copenhagen	OECD	5	25.0	0.0	25.0	9.6 %	29
30	Indonesia	Jakarta	—	5	12.0	12.0	24.0	9.2 %	30
31	Argentina	Buenos Aires	Ibero- America	5.5	11.0	13.2	23.7–24.2	8.3 %	33
32	Guatemala	Guatemala City	Ibero- America	5	15.0	8.4	23.4	9.0 %	31
33	Ecuador	Guayaquil	Ibero- America	5	10.7	12.0	22.2	8.5 %	32
34	Dominican Republic	Santo Domingo	Ibero- America	5.5	12.8	9.4	21.8–22.2	7.6 %	36
35	Paraguay	Asunción	Ibero- America	5	12.0	9.9	21.4–21.9	8.2 %	34
36	Netherlands	Amsterdam	OECD	5	20.0	0.0	20.0	7.7 %	35
37	Canada	Toronto	OECD	5	10.0	9.0	19.0	7.3 %	37
38	Mexico	Mexico City	Ibero- America · OECD	5	12.0	6.6	18.6	7.1 %	38
39	Honduras	Tegucigalpa	Ibero- America	5	10.0	8.6	18.2–18.6	7.0 %	39
40	El Sal- vador	San Sal- vador	Ibero- America	5	10.7	7.7	18.1	7.0 %	40
41	Thailand	Bangkok	—	5	5.0	13.0	17.8–18.0	6.8 %	41
42	Israel	Jerusalem	OECD	5	11.4	6.4	17.9	6.9 %	42
43	Türkiye	Istanbul	OECD	5	11.7	5.4	17.0	6.5 %	43
44	Costa Rica	San José	Ibero- America · OECD	5	10.0	7.0	16.7–17.0	6.4 %	44
45	Japan	Tokyo	OECD	5	10.0	0.0	10.0	3.8 %	45
46	United States	New York	OECD	5	0.0	0.0	0.0	0.0 %	46

Source: authors' calculations. Ordered by released work days. The last column gives the rank under the alternative criterion —fraction of the working year—; that the two nearly coincide is a property of the current data and not of the method, and the section on the construction of the measure explains the three criteria. *Note:* an interval in the rest column indicates that the statute does not determine whether holidays falling inside the leave period extend it.

1.1. How to read the distribution

Three features of the preceding exhibit do not show up in a median.

The set is continuous except at its lower end. There is no group of generous jurisdictions and another of restrictive ones with a gap between them: over most of the range, the median difference

between consecutive positions is 0.43 days, below the declared uncertainty of the measurement itself. The practical consequence is that **the ordinal rank conveys less information than it appears to**: a handful of places of distance may correspond to less than one work day per year. That is why this report uses the rank only inside exhibits and never in a claim.

The exception is at the bottom, and the law explains it. The United States and Japan sit apart from the rest by a step of 10.0 days, which is 23 times the median difference across the rest of the ranking. Both belong to the group whose holiday calendar creates no obligation enforceable against the private employer; and unlike Denmark and the Netherlands, which are in that same situation, they do not offset it with a broad leave entitlement. The next section develops that case.

The upper part concentrates jurisdictions whose leave statute grants five weeks or more. Peru is at the top through a different combination, which is the subject of the next section.

Peru's distance to each benchmark is not the same. Against the Ibero-American median —22.8 days— the difference is wide; against the OECD one —28.5— it is narrow. One and the same statement, «Peru is above the median», describes two different situations depending on the group, and that is why the headline message names both.

1.2. What these figures mean in terms of the worker

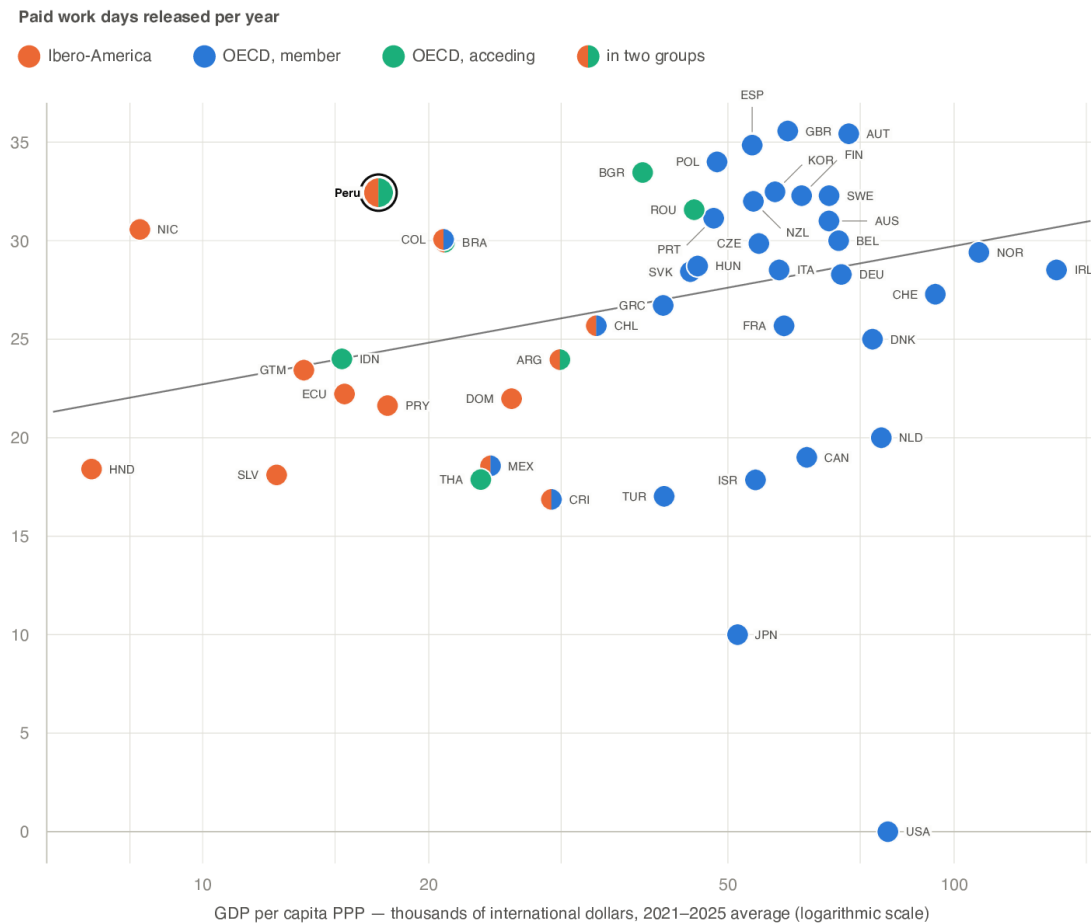
Translating the unit helps with scale. Peru's 32.4 released work days add up both entitlements: the leave the law obliges employers to grant and the holidays that actually release a working day. Expressed as a fraction of the time the reference worker would have spent working, it is 12.5 % of their working year.

That figure does not say the following. It does not say how many days a Peruvian worker rests: it says how many they can demand. The distance between the two —compliance, informality, effective take-up of the leave entitlement— is substantial in any country and this work does not measure it. In an economy with high informality, moreover, the statutory floor describes the situation of a fraction of the employed population, not of the whole.

1.3. The level is not explained by national income

A reader who sees Peru above both medians immediately asks the obvious question: if statutory rest rose with wealth, Peru's position would say nothing about its legislation and everything about its income level. The question has an answer in these data.

Figure 1. Statutory rest and output per head, 2026 cut



46 jurisdictions, 2026. Annual leave plus the public holidays falling on a work day, counted in each country's work days; weekly rest not included. In 17 countries the law does not say whether holidays falling inside the leave period extend it: there the centre of the range is plotted. It is an expected value, not a guaranteed minimum.

Not shown in the chart: **Bolivia**, because its statute has an unresolved grammatical ambiguity, and that gap is ours and not the legislature's. The absence is the datum and not a zero: plotting it at zero would put a value in the figure that the calculation does not emit.

The line excludes the United States and Japan: they are the two that guarantee no public holidays to the private employee. Both are still plotted. Over the full 46 units the slope is +4.2 rather than +7.0. The line is descriptive — income does not explain the entitlement.

Ireland and Norway have output per head inflated relative to their residents' income, through multinational accounting and petroleum rent.

Sources: law in force, authors' coding of the statutes. Income, World Bank, 2021–2025 average.

Figure 2: Paid work days released per year against output per head at purchasing power parity, logarithmic scale.

There is an association and it is weak. The line fitted over the 44 jurisdictions that remain once United States and Japan are excluded — the two that guarantee no public holiday at all to the private employee — rises 7.0 days for each tenfold multiplication of income, with a coefficient of determination of 0.14. **That exclusion is not innocuous, which is why it is stated here:** the two excluded are among those guaranteeing the least rest, and without excluding them the slope is 4.2. The association this figure shows is the strongest that these data admit, not the only one.

The magnitude is what matters, and it can be read without statistics. Across the entire income range of the set — from one end to the other, a factor of more than ten — the line describes a span of 9.0 days. The distance separating the most generous jurisdiction from the least generous is 35.6 days. Income tracks part of the variation and leaves out the greater part.

And Peru sits 8.1 days above what its income level predicts — a distance almost as large as the entire span the line describes from end to end. Its position is not a by-product of its income.

And the association is not merely weak: its sign depends on how it is weighted. Weighting each jurisdiction by its population, the slope moves from 4.2 to –15.6 days and changes direction. The change is produced by a single observation: the United States, whose population is 16 % of the set and whose statutory rest is zero. That slope is a correct measurement and it rests on one point, and both things have to be said together. The line this report publishes is the one that depends on no particular observation.

Three warnings about how to read this figure, and all three bound it in the same direction.

The line is descriptive and estimates no effect. There is no sample here: the set is the entire population of the reference group, so a fitted line does not even have the inferential excuse. It describes a shape; it does not identify a relationship.

Output per head is context and not explanation. This work does not measure why a legislature grants the days it grants, and none of the above should be read as income determining them, or failing to.

Ireland and Norway have output per head inflated relative to their residents' income: the former through multinational accounting, the latter through petroleum rent. Both are declared in the figure's note.

2. A similar total can come from very different entitlements

Table 3. Decomposition of the total into annual leave and expected effective public holidays, 2026 cut

component	Peru	OECD median	Ibero-America median
Annual leave, in working weeks	4.29	4.00	2.40
Effective public holidays, in weeks	2.40	1.70	1.80
Holidays lost to weekly rest, in weeks	0.80	0.29	0.54

Source: authors' calculations. **The holiday figure is an expectation, not a count**, and can therefore be fractional: a fixed-date holiday that the law does not rescue when it falls on a weekend releases a day in five years out of seven, and enters weighted by that probability rather than by the specific year of the cut. Holidays the law rescues, and those anchored to Easter, enter as integers because their day of the week is deterministic.

Against the OECD, Peru's annual leave entitlement is equivalent —4.29 weeks against 4.00— and the whole distance is set by public holidays. Against Ibero-America the relation reverses: the regional median for leave is 2.40 weeks, well below Peru's, and there the leave entitlement explains most of the difference.

That the same position is reached by different routes is not a statistical curiosity. It has three consequences for policy design.

2.1. In some jurisdictions the holiday calendar creates no entitlement at all

The extreme case of the preceding distinction is stated with names because it explains positions in the ranking that would otherwise look like errors.

In 4 jurisdictions of the set —**the United States, Japan, Denmark and the Netherlands**— the public holiday calendar **creates no obligation enforceable against the private employer**. The days exist,

they are in the official calendar and in several cases they close the public administration, but the law does not require a private firm to grant paid rest for them: whatever exists in the private sector arises from collective agreement or contract, not from statute.

Another 2 sit halfway: **France declares eleven holidays and only one is enforceable**, the first of May. It is not that its calendar is short; it is that the rest of its days create no individual entitlement against the employer. **Costa Rica** is the other case, with a minority of its days outside the mandatory regime.

Across the whole set, 58 of the 569.5 declared holiday days in the 47 jurisdictions **have no enforceable backing**. That proportion is the direct measure of how far counting calendars misleads.

Two consequences.

The first concerns reading. Any comparison that counts calendar days places those jurisdictions in the upper half and Peru below several of them. Counting enforceable entitlement, the relation reverses. This is not a technical nuance: it is the difference between comparing calendars and comparing entitlements, and only one of the two describes what a worker can claim.

The second is substantive and bounds the scope of this work. That the statutory entitlement is nil does not mean the rest is — in those countries effective coverage by agreement or by custom may be high, and this work does not measure it. What the comparison shows is where rest is guaranteed **by law** as against where it depends on bargaining. For a Peruvian policy discussion that distinction is precisely the relevant one, because it is the one the legislature can move.

The two entitlements are allocated differently. A public holiday is a fixed date that coincides for the whole employed population: **it need not be requested or negotiated**. Annual leave, by contrast, is placed, and its placement is negotiated. An entitlement of equal size can yield very unequal rest depending on who decides when it is taken, and this project's own evidence on placement rules shows that in a good share of jurisdictions disagreement is resolved by the employer. How much of that design difference translates into a difference in effective enjoyment is a compliance question, which this work does not measure.

They produce different economic effects. The holiday is synchronised: it concentrates consumption, travel and demand for services on known dates, and its cost to the employer concentrates likewise. Leave is spread across the year. The same total can correspond to very different seasonality profiles, and a reform that moves the total through one channel or the other does not produce the same effect.

They are reformed by different routes. Adding a public holiday is a discrete legislative act, of low political cost and immediate effect; changing the leave regime touches the employment contract and usually requires negotiation. It is reasonable to expect that this biases observed policy towards the cheap instrument.

This work's data are consistent with that hypothesis, and the comparison now holds. Among the units with both cuts captured, the holiday count moved in 21 of 45; the leave entitlement, in 4 of 45. The denominators are not 47 and that is worth stating: 2 units have no 2016 holiday cut captured, and for them the panel shows a jump from zero that **is an absence, not a change**. Counting it would invent a reform nobody measured.

For much of this work that comparison was unusable, and it is worth saying why it no longer is. A delta of zero in leave could mean there was no reform or that none had been sought, and while the older cut was mostly assumed, its stillness measured the state of the record and not that of the legislation. Today the 2016 cut has 41 cells whose no-change was **sought and confirmed** against an official amendment index or a located instrument, 4 with their reform captured and dated, and 0 assumed. The stillness of the leave entitlement is a finding about legislation, not a shadow of our search.

What the data do not say is why, and there the abstention stands: one instrument being used more

than the other is consistent with the political-cost argument and with at least two others this design does not separate. One: the leave entitlement may sit near a ceiling of international convergence, in which case the stillness is saturation rather than cost. Two: the effective route of increase may be collective bargaining rather than statute, in which case the statute stays still while effective rest moves outside our measure — consistent with a reform ledger that records changes to the rules of enjoyment and none to the quantity. **The asymmetry is published; its cause is not**, and the alternatives are named so that the reader can argue with us.

For the Peruvian case, the reading is that **its high position against the OECD rests on the synchronised instrument and not on the individual one**. Any discussion about the level of the statutory floor should begin by deciding which of the two is being talked about.

3. The change over the decade is uneven, and its provenance has to be read

Before the exhibit, a distinction that governs this whole section and that the data record explicitly. A 2016 value may be **verified** against the statute in force at the time, or recorded as **assumed**, which means «no amending statute was found between the two cuts». They are not the same, and confusing them is the error this project set out to correct in the material it started from.

The split is asymmetric between the two entitlements and is worth knowing before reading any delta. For **public holidays**, the 2016 cut was captured against source in most jurisdictions. For **annual leave** there was a dedicated verification campaign, and its result is that 41 units have their no-change confirmed against an official index of amendments to the article or against a located and dated instrument, with 0 still assumed. The jurisdictions with a captured leave reform in the period are 4, and they are also the only ones with two recorded versions of their statute; among them Mexico's, whose first-year entitlement went from six to twelve working days with effect in January 2023 by decree published in December 2022, and Israel's, which raised the entitlement with effect in January 2017.

From this followed a reading rule that now applies only to the assumed ones: **an unverified delta of zero is not evidence of legislative stability**. It is the absence of a positive search for amendments, and it is declared as such.

Table 4. Change in the holiday count between 2016 and 2026

country	jurisdiction	2016 cut	2026 cut	change	of which enforceable in 2026	provenance of the 2016 cut
South Korea	Seoul	1	18	+17	18	verified
Greece	Athens	4	9	+5	9	partly verified
Romania	Bucharest	12	17	+5	17	partly verified
Peru	Lima	12	16	+4	16	verified
Portugal	Lisbon	9	13	+4	13	verified
Ecuador	Guayaquil	10	12	+2	12	verified
Argentina	Buenos Aires	15	16	+1	16	verified
Brazil	São Paulo	11	12	+1	12	verified
Chile	Santiago	15	16	+1	16	verified
Germany	Berlin	9	10	+1	10	verified
Hungary	Budapest	10	11	+1	11	partly verified
Ireland	Dublin	9	10	+1	10	verified
Nicaragua	Managua	11	12	+1	12	verified
New Zealand	Auckland	11	12	+1	12	partly verified

country	jurisdiction	2016 cut	2026 cut	change	of which enforceable in 2026	provenance of the 2016 cut
Poland	Warsaw	13	14	+1	14	verified
Paraguay	Asunción	12	13	+1	13	verified
Türkiye	Istanbul	6	8	+1	8	verified
United States	New York	10	11	+1	0	verified
Austria	Vienna	14	13	-1	13	verified
Denmark	Copenhagen	11	10	-1	0	verified
Slovakia	Bratislava	15	11	-4	11	verified

Source: authors' calculations over the two cuts. *Note:* the observed change includes temporary measures in force in the year of the cut; see the warning on Slovakia immediately below.

A temporary measure can read as a permanent reform, and in this exhibit it does. Eslovaquia records a fall of 4 holidays between the two cuts, and both figures are correct. But the **permanent** fall is 2: the remaining 2 days are suspended by a transitional provision that expires at the close of the cut year and restores them the next. This study's cut falls precisely in the only year in which the suspension is active.

The case goes beyond Slovakia because **the defect belongs to the two-cut design and not to the capture**. A measurement at two moments does not by itself distinguish a reform from a transitory measure that happens to be in force on the chosen date; both look the same. And a source that publishes one scalar per year cannot distinguish them either, because the difference lies not in the value but in the legal basis that produces it.

What this dataset adds is exactly that basis: it records whether a change is permanent or temporary, with the statute that provides for it and the date on which it expires, so that the warning travels attached to the figure in the appendix of the affected unit. Anyone using that delta for a cross-country comparison should use the permanent one; anyone studying the effective calendar of the current year, the observed one. **The correct figure depends on the question, and that is why both are published with their basis.**

The provenance of this exhibit is weaker than that of the rest of the document, and that is why the caveat sits next to the figure and not in an annex. **The last column states, unit by unit, where the 2016 cut comes from**, and it is worth reading before the change itself: the same delta weighs differently depending on whether the 2016 statute was read or merely assumed unchanged.

What the exhibit does **not** show matters too. Only units whose count moved appear here; the remaining 26 have no row, and that absence groups different things: 9 with the 2016 cut verified, 7 partly verified, 8 assumed unchanged and 2 not captured. Only the first group licenses reading the zero as **verified absence of reform**; in the assumed ones, the zero means nobody looked. The 2016 cut is not captured for 2 jurisdictions, because their calendar is set by decree each year.

4. How one of these figures is built: the Peruvian case step by step

This section reconstructs Peru's figure from the legal text to the published number, as an illustration of the procedure. Any other jurisdiction is derived with the same steps, and each unit's verification appendix walks them cell by cell.

4.1. Where the leave entitlement comes from

The Peruvian statute grants **30 days** of annual leave. The first step, and the one that introduces most error if skipped, is to ask **days of what**: «Decreto Legislativo 713», which consolidates the legislation on paid rest, counts them in **calendar days** and not in working days. Thirty consecutive days include the Sundays.

Converting them to a comparable magnitude requires no assumption about working time. A calendar day is a seventh of a week, whatever is worked, so 30 calendar days are **4.29 weeks of entitlement**. That is the figure that depends on no convention.

Expressing it in work days does require fixing how many days the week has. On the five-day frame, 4.29 weeks are **21.4 work days**. It is a multiplication, not an additional assumption: it changes the label, not the entitlement.

This is where the standard comparison breaks. The most widely used comparative index records Peru's 30 days without converting them, and for Germany converts from *Werktage* to a five-day week. The two numbers end up in the same column meaning different things.

4.2. Where the number of public holidays comes from

The Peruvian calendar declares more holidays than actually release a work day, and the difference matters. Two filters apply in order.

First, the regime. Only holidays the law declares to be of mandatory paid rest count. Those of optional observance, or those without a national mandate, fall outside —not because they are worth less, but because they are not an entitlement enforceable by the reference worker.

Second, the day they fall on. A holiday falling on weekly rest releases no working day. At the 2026 cut, **12 expected effective holidays** release a work day in Peru, against a median of 8 across the set.

The word **expected** is not decoration. A fixed-date holiday that the law does not rescue when it falls on a weekend releases a day in five years out of seven, and enters weighted by that probability rather than by the accident of the specific year. The alternative —counting 2026 as it actually fell— would make a jurisdiction's figure move year to year through calendar rotation and not through reform, which is exactly what this work wants to be able to distinguish. Holidays anchored to Easter enter as integers: Easter is always a Sunday, so Good Friday is a Friday every year.

4.3. Why the total is not the sum

Adding the two entitlements requires resolving what happens when a holiday falls **inside** the leave period. There are two possible regimes and each jurisdiction's statute picks one: either the holiday **extends** the leave —and then the two entitlements add— or it **is counted against** it, and then the worker does not gain that day twice over.

Peru belongs to the second regime. That is why its total, **32.4 released work days**, is smaller than the sum of 21.4 and 12: the overlap between the two entitlements is netted out.

That netting **is an expectation and not an entitlement read from the statute**, and the distinction matters because it changes what the figure means. The law does not say how many holidays will fall inside a worker's leave: it depends on when they take it. The discount is obtained by assuming that the start of the leave period is uniformly distributed across the year, which is our assumption and not a reading of the legal text. Consequently, **the published total is not an enforceable minimum but an expected value under that distribution**: the minimum the law guarantees with certainty is somewhat lower, and the attainable maximum, somewhat higher.

And the uniformity assumption has a known direction. Leave is not evenly spread: it concentrates in summer and around the end-of-year holidays, which is also where public holidays accumulate. If that concentration is real —and there is little doubt that it is— the effective overlap is **larger** than this calculation nets out, so the published total **overstates** rest in the jurisdictions that count holidays against the leave period. It is not corrected because correcting it would require effective placement data this work does not have; it is declared because the bias has a sign and the reader needs to know which.

It is a construct decision with consequences, and that is why it is declared: two jurisdictions with identical nominal entitlements can differ by more than a day on account of this regime alone.

4.4. The dimensionless figure

32.4 released days over the Peruvian working year are **12.5 %**. This is the figure to cite in a comparison, because a released day for someone who works six days a week is not the same fraction of their time as for someone who works five.

4.5. How much of this depends on our conventions

Three things, and all three can be moved to see what happens.

The week. No statute in the group declares how many days make up the ordinary week, and Peru's is no exception: it sets hour caps, and from those six is the maximum tolerated, not an imposed distribution. Under the **common five-day frame**, which treats every jurisdiction alike, the Peruvian figure is **32.4 days** instead of 32.4.

The ordering criterion. Peru ranks 7 by released days, 7 by fraction of the working year and 7 under the common frame, out of 46 jurisdictions.

The weighting of holidays. With realised rather than expected counting the figure changes with the year of the cut; the protocol documents why the expectation was chosen.

None of the three moves the front-page claim: under all three, Peru is above the Ibero-American median and above the OECD median. That is the reason the headline message is expressed against the medians and not with a rank.

4.6. What would have to be consulted to verify it

Peru's verification appendix walks each of these cells with the protocol rule applied to it and, where the capture recorded it, the verbatim passage of the statute. The country appendix lists the sources with their level. Both travel in the data package.

Part II · How it was measured, and why it had to be measured again

5. Whom Peru is compared against, and why

A comparative result depends as much on the comparison group as on the measurement. This section describes the group and defends its composition; the universe has been frozen since before the first datum was collected, so no unit entered or left on the basis of what was found in it.

5.1. The rule

The group is the **union of three components**, and a country enters if it meets at least one:

- **Ibero-America** — an American country of Iberian language.
- **OECD** — full member.
- **Accession** — an OECD accession process open at the cut date.

On that union a **population floor of five million inhabitants** is applied, along with a list of **substantive exclusions** resolved before the components. The total is 47 units, Peru included.

5.2. Why these three components, and not some other cut

Ibero-America is the group against which the comparison is interpretable. It shares a legal tradition —codified civil law—, a common origin in twentieth-century labour legislation, and informality structures of the same order. When a Peruvian official asks whether the country is short or long, this is the comparison they make, and it is the one public debate reproduces.

The OECD is the benchmark against which Peru is being institutionally assessed. It is not included as rhetorical aspiration: Peru has an open accession process, which makes the set of full members a benchmark with concrete consequences for policy review. It also supplies the variation Ibero-America does not have: different working-time regimes, different collective bargaining traditions, and statutes written in counting units that do not appear in the region —Germanic *Werktag*, Anglo-Saxon weeks— which is precisely what makes it possible to detect the unit problem the method section documents.

The accession countries are the trajectory peers. They share with Peru the condition of being measured against a standard they do not yet belong to, and they contribute institutionally distant cases —Indonesia, Thailand— without leaving the criterion.

What was discarded and why. Comparing against the whole world would have diluted the result in uninterpretable heterogeneity: a statutory rest floor only means something where there is an enforcement apparatus that makes it demandable. Comparing only against Latin America would have given a parochial result without the contrast of counting units. The union of the three answers the two questions a reader asks —«how do we stand among peers?» and «how do we stand against the standard?»— without having to choose one.

5.3. The population floor, and what it costs

The floor leaves out Panama, Uruguay, Croatia, Lithuania, Slovenia, Latvia, Estonia, Luxembourg and Iceland.

It rests on two reasons. The first is comparability: below that threshold, the labour market and the legislative process differ in kind, not in degree —a small country can reform its holiday calendar at a political cost that would be unfeasible in a large one—. The second is stability: in very small and very open economies, aggregate figures are volatile and a single unit can move a median.

And what the floor costs has to be stated, because it is not free: it leaves out Uruguay, a natural comparator for Peru by region, legal tradition and level of formalisation. A reader who wants that comparison will not find it here, and the rule —not convenience— is the reason. The alternative, lowering the threshold, would have brought in microstates whose figures are of another nature.

5.4. The substantive exclusions, and why they are mechanical

The following fall outside before the components are applied: Cuba, Venezuela, Iran, Iraq, Ukraine, Myanmar and Russia.

What makes this list defensible is not its content but **its trigger**: each exclusion rests on a citable external source and not on our own judgement. Cuba and Venezuela fall outside for being outside

the international statistical system — Cuba is not a member of the International Monetary Fund or the World Bank; Venezuela is under a declaration of censure by the Fund for failure to provide data—. The other five, for state-based armed conflict recorded in the Uppsala Conflict Data Program.

The substantive reason is the same in all cases: in those cases **only statutory entitlement is observable and not its realisation**. The legal texts exist and are public, so a measurement of law in force could include them without technical difficulty; including them would have produced figures that are formally correct and substantively empty.

That the criterion is mechanical matters for a concrete reason: **it prevents the composition of the group from depending on what suits the result**. A reader can recompute the exclusion list with the cited sources and obtain the same one.

5.5. The union is not a partition

The three components overlap, and this is worth bearing in mind when reading the group aggregates. Chile, Colombia, Costa Rica and Mexico belong to Ibero-America and the OECD at once; Argentina, Brazil and Peru itself, to Ibero-America and accession. The intersection of OECD and accession is empty by construction, because full membership and an open process are mutually exclusive.

Consequently, **the group medians in this document are not medians of disjoint subsets**, and adding the counts of the three components exceeds the total. The exhibits label each unit with every group it belongs to, rather than assigning it to one.

5.6. The reference worker

The reference worker is the same in every jurisdiction: exactly twelve months of continuous service with the same employer, formal private sector, in the most populous city.

Each choice bounds the scope in a determinate direction. **Exactly twelve months** places the measurement on the first step of the seniority schedules, which is the most comparable and also the least generous where the law rewards tenure. **Formal private sector** excludes public employment, whose regimes are usually more favourable, and informal employment, where the entitlement is not enforceable. **The most populous city** resolves the federal problem described next and biases towards urban jurisdictions, which in several countries have additional local holiday calendars this work does not count because they are not a national guarantee.

5.7. The unit of observation is a jurisdiction, not a country

In a federal state without a national holidays statute «the country's number» does not exist: averaging jurisdictions would manufacture a figure no statute grants. The tables name the country for legibility and the jurisdiction for precision; where the scope is subnational, the exhibit note declares it.

6. The construction of the measure

Released work days are obtained by adding the expected effective holidays of the cut year and the leave entitlement expressed in the same unit. Four decisions govern that sum and all four change the number.

Effective, not nominal, holidays. The actual date of each holiday in the cut year is resolved and it counts only if it falls on a working day in that jurisdiction. Two exceptions, both declared and counted in the calculator's output: there are holidays whose date **is not resolvable** — lunar calendars, statutory cross-reference, local custom — which are counted as if they released, which overstates those jurisdictions; and **substitution rules** are not captured as a field except where the date class expresses

them, so jurisdictions that substitute appear to lose days they recover in practice.

6.1. A legislature that performs our own conversion

This section defends a convention: to compare, entitlements have to be brought to a common unit, and doing so requires assuming a week. The natural objection is that the convention is ours and not the legislature's.

The Israeli case offers external evidence on that point. Its reform of the leave entitlement is accompanied by an official explanatory memorandum that **performs the conversion itself** from calendar days to a five-day week, declaring the work-day equivalent of each of the two values. It is a conversion attested in a first-level source and not a derivation of ours.

It does not prove our convention is the only possible one, and it is not presented that way. It proves something more modest and sufficient: that **the operation this work performs in order to compare is the same one a legislature performs in order to explain itself**. A convention the issuer of the statute employs when describing its effect is not an analyst's artifice.

The week is not fixed by law. The weekly basis on which the leave statute is written is not the week the worker works: Austrian *Werktage* are written on a six-day week while the Austrian worker does five.

Reading the operative text of the 47 jurisdictions turned up something we did not expect: **almost no statute IMPOSES a weekly distribution of days**. Some do write a number —Ecuador says that working days «may not exceed five in the week»— but they do so as a cap and not as an allocation. What the laws fix are caps —so many hours a day, so many a week— and from those a number of days can be *deduced*, but deducing it is not reading it. The Peruvian case shows this: its statute says «eight hours daily **or** forty-eight weekly», disjunctively, so six is the maximum it tolerates and not a distribution it imposes; a five-day week is equally lawful.

That is why the week used in the calculation is a **declared assumption and not a read datum**, and it is recorded as such row by row. Treating a legal ceiling as if it were actual working time shifts a jurisdiction's figure appreciably, and it is an easy error to make without noticing.

The fraction of the working year, in addition to the days. A working day for someone who works six is not the same good as one for someone who works five. The fraction is the dimensionless figure, and it is the one cited in this report.

Imputation follows the statute to the letter. Where holidays inside the leave period extend it, they are added; where they are counted against it, the expected overlap is subtracted; and where the statute is silent, the result is an interval and not a point.

6.2. The three orderings and why all three are published

With the same data there are three defensible ways of ordering, and they do not coincide.

By **released days** the question is how many days the worker would have worked that the law releases. It is worth being precise about what that presupposes, because it is more than it appears: deciding whether a holiday «would have been a work day» requires a weekly calendar, so the figure **does depend on a working-time assumption**, and not on one alone. By **fraction of the working year** it is divided by the days that jurisdiction works per year: it is dimensionless, but it incorporates the assumption that someone who works more days needs proportionally more free days to be equally rested. By **common five-day frame** all are measured with the same week, ignoring actual working time: this is what the comparative literature does and it allows a contrast with it.

Both halves of the calculation use the same calendar, and that coherence is a condition of the

result and not an implementation detail. Deciding whether a holiday would have been a work day and converting the leave entitlement into work days are the same question posed twice; if each is answered with a different week, the sum describes two workers and not one. The consequence is concrete and runs in one direction: counting holidays against a week longer than the one used for leave **inflates** the total, and inflates it most where there are most holidays.

That is why the choice of week is resolved at a single point of the calculation and feeds both halves, and why the set is also published under the common five-day frame, which is coherent by construction and serves as a contrast.

Peru ranks 7 by released days, 7 by fraction and 7 under the common frame, out of 46 jurisdictions. For Peru the three criteria coincide, and across the set the rank differences between them are small — the exhibit in the body publishes the two main orderings side by side so the reader can see them, rather than having to take this sentence on trust. All three are published, for two reasons: because choosing one silently hides a choice of unit —which is exactly what this work points out in the prior art— and because the coincidence is a property of the current data and not of the method.

Why the headline message carries no rank. The ordering is sensitive to data corrections that have nothing to do with Peruvian law. Over the course of a single day of cleaning, Peru's rank changed again and again, as the reading of working time, the treatment of jurisdictions without mandatory holidays and the move from realised to expected counting were each corrected. Its position **above both medians** did not change in any of those revisions. The headline predicate rests on what turned out to be stable, and ordinals live in the exhibits, with their cut-off declared.

7. Data, sources and coverage

Table 5. Coverage of the dataset

Reference jurisdictions	47
Recorded public holidays	577
Holidays with conditional existence	5
Jurisdictions with a leave entitlement	45
Versions of that entitlement (more than one where there was a reform)	49
Placement rules	53
Cited sources	251
Official gazette or government portal sources	166
Links between a fact and its source	1475
Validations run against the database	37

Source: authors' calculations.

Every value comes from the legal text and every source carries a declared **level**. The level is declared row by row and **is not averaged**: agreement among secondary sources does not raise a verification. 85 of 251 sources are above the government-portal level.

45 jurisdictions have a recorded leave entitlement. The remaining 2 lack one for different reasons, and the distinction matters. In the **United States there is no federal statutory mandate** of paid leave: the absence **is the datum**, and replacing it with an imputed value would invent an entitlement the law does not grant. In **Bolivia** the statute has an unresolved grammatical ambiguity, so the gap is ours and not the legislature's; it is declared as such rather than resolved for convenience.

There are in addition 81 measurements recorded as not applicable after being evaluated. They too are a result: the condition was examined and is not met, which differs from not having looked.

8. What this measurement contributes relative to existing sources

The quantitative coding of labour statutes for cross-country comparison begins with Botero et al. (2004) and develops in the subsequent leximetric programme. Three comparative sources on statutory rest exist today, and the reasonable question is why a fourth was needed. The answer is not that the others are wrong: it is that none of them can answer this question, and each for a different reason.

Table 6. What each source offers and what prevents it from answering this comparison

source	coverage	what it offers	what prevents it from answering this question
<i>CBR Labour Regulation Index</i> (Adams et al.)	broad and annual, long series; both entitlements	The field's only long time series, the most used in research, and with a statutory citation per change	It normalises with caps, so the count is recovered by multiplying by the cap except in censored cells; what is never recovered is the counting unit —what kind of day is at issue— and that is the information this comparison needs
TRAVAIL database (International Labour Organization)	broad, but currently offline	Statutory text by country with institutional detail, including the placement dimension	Its site stopped responding after the portal migration and its last declared vintage is more than a decade old; it is not consultable by a reader
<i>No-Vacation Nation</i> (Ray, Sanes and Schmitt)	developed countries	A careful comparison, explicit about its limits	A single point in time, without Ibero-America, and it does not cover holidays and leave in the same design
This work	47 jurisdictions, two cuts for holidays	Both entitlements in the same design, with the counting unit as a column and traceability to the statute	Short window, two moments rather than a series; it does not measure practice

Source: authors' compilation from the documentation published by each source.

Three concrete consequences follow.

The counting unit is preserved, so the figure is recalculable. Anyone who prefers another convention —counting in consecutive days, assuming a six-day week, treating weekend holidays differently— can redo the calculation with the published data. A normalised index does not allow that: the information is lost in aggregation.

Guatemala and El Salvador are not in the main prior source. They do not appear in the *CBR* database, so for them there is no contrast with the field's most used series. They are in the International Labour Organization material recovered from the archive, with a much earlier vintage. That is why they were captured independently in duplicate: with no contemporary prior source to cross against, blind double coding is the main net.

The contribution is not covering an entitlement others do not cover, and it should not be oversold: the main prior source contains both entitlements in the same dataset. What is added here is that the two are measured **with the same reference worker, the same effectiveness rule and the counting unit declared in both**, which allows the total to be decomposed without mixing conventions. That is the condition for this report's second result.

8.1. A source that ceased to exist, and what was done with it

The International Labour Organization's TRAVAIL database was the natural institutional reference for this question: it covered more than a hundred countries with statutory text and, unlike the indices, preserved the placement dimension of the leave period. **Today it does not respond.** Its site became unavailable after the Organization's portal migration, and the last vintage it declared is more than a decade old.

That disappearance is not a bibliographic detail. It means that a reader wanting to contrast any comparative figure on statutory rest against the reference institutional source **cannot do so**, and that the applied work citing it rests on something that is no longer verifiable.

This project recovered from the web's historical archive the records of 45 of the jurisdictions in the group, with their statutory citations, and keeps them as comparable material. They have two uses worth distinguishing: they are an **independent source to cross-check** our capture against —with the caution that their vintage predates our initial cut— and they are, in themselves, a record of a public resource that ceased to be one.

8.2. The comparison cannot be made with the prior source because it does not preserve a common unit

The field's most used comparative index (Adams et al., 2023) normalises annual leave by dividing the days granted by a cap, and its methods documentation (Adams, Bishop and Deakin, 2017) does not specify days of what. Its own coding notes show that the criterion is not uniform:

Table 7. Treatment of the counting unit in the prior source's coding notes

country	what its coding note records	codes	converts?
Germany	«24 working days if 6-day week; 20 if 5-day week»	20	yes
Turkey	«14 days»	14	no
Peru	«30 days»	30	no

Source: coding notes published by Adams et al. (2023). The values in this exhibit belong to the prior source and are reproduced verbatim.

Turkish days have the same legal structure as German ones —they exclude Sundays and public holidays, they include Saturday— and receive opposite treatment. Peruvian days are consecutive days and enter without conversion alongside the other two.

Across the 43 comparable jurisdictions, the mean difference against that index is smallest where the law already counts in working days (−0.5) and largest where it counts in calendar days (−5.6). The pattern **is consistent with** a counting-unit problem; it does not demonstrate that our procedure is free of bias. The full development and the divergence audit are in the section on the prior source.

9. The prior source and the divergence audit

Of the 47 jurisdictions, 8 differ from the prior source in the holiday count. An independent auditor classified them, with explicit instruction that «indeterminate» was a legitimate answer.

Table 8. Classification of the audited divergences

category	n
our error	0
prior source out of date	3
construct difference, with no error on either side	3
indeterminate	2

Source: document-against-document audit.

The out-of-date cases are verified against the prior source's own coding notes. In Bulgaria its note cites the labour code as it stood in the 1996 consolidation; in Romania it attributes two days to 2008 when there were three; in Ecuador the recitals of the amending statute transcribe the earlier list and state expressly which day was not on it.

That the auditor found no errors of ours is not equivalent to demonstrating that there are none.

Table 9. Difference against the prior source by the statute's counting unit

statutory unit	n	mean difference	agree
working days	19	-0.5	12
weeks	11	-2.0	8
<i>Werkstage</i>	6	-3.6	1
calendar days	7	-5.6	1

Source: authors' calculations over the 43 comparable jurisdictions.

The Peru–Germany case fixes the magnitude: the index records 1.00 and 0.67, which read as they stand gives 49 % more for Peru; converted to the common unit, 21.4 and 20.0 days, a 7 %.

The prior source's dataset is not republished. The observations indispensable to sustaining the comparison are reproduced and the rest is expressed as a computed difference and a reference to its dataset.

10. The dataset detects known reforms

A new measurement has to show that it measures, and internal coherence is not enough: two coders can agree on the same error. The demanding test is external — checking whether the data reproduce independently documented legislative changes, without the procedure having known of them.

The capture was done country by country by reading statutes, **without a list of expected reforms to guide the search**: the coders read legal texts, not headlines. What follows is the subsequent contrast against independently documented episodes.

Denmark. The Danish parliament abolished *Store Bededag* by a 2023 statute, effective from 2024, to fund defence spending. It falls squarely between the two cuts and its direction is unambiguous. The dataset records the loss of one holiday between 2016 and 2026, with the 2016 cut in verified status.

South Korea. The 2018 reform of article 55, second paragraph, of its labour statute extended to the private sector the holidays that until then bound only public bodies. It is the largest jump in the whole set, and the dataset captures it: the Korean capture documents that at the start of the window the private worker had a single statutory paid holiday — the first of May — and today has the full calendar. A reader could have taken that jump for a capture error; it is a reform.

Romania. It adds holidays across the period, and the count reflects this. It is also one of the divergences against the prior source that the audit classified as the prior source being out of date and not

as an error of ours.

Portugal. It restores four holidays suspended during the crisis, and the dataset records the change between cuts. The case has a construct edge that is developed below.

And in annual leave, two. Mexico's «vacaciones dignas» reform —the first-year entitlement goes from six to twelve working days with effect in January 2023— and Israel's, which raises the entitlement with effect in January 2017. Both are captured against primary source and with their two versions recorded, so the dataset shows the earlier and the later value rather than only the one in force.

Five episodes recovered across two entitlements, all against sources the procedure did not have in front of it when capturing. This is evidence that the instrument picks up real legislative change.

10.1. Portugal, and why the anchor matters

Portugal suspended four national holidays from 2013 and restored them by parliamentary vote in April 2016. The dataset records the recovery between the two cuts, with the 2016 cut verified against source.

The case matters because **the result depends on a construct decision that is easy to overlook**. This study's anchor is the statute in force on the first of January of the cut year. The Portuguese restitution came after that date, so at the 2016 anchor the four holidays **were still suspended** and the correct value is the reduced one. With a year-end anchor, or with a capture that recorded only the year and not the day, Portugal would appear unchanged and the episode would disappear from the dataset.

This is not a hypothesis: **it happened**. An earlier version of the loader recorded validity with year precision, Portugal came out identical at both cuts, and the case forced a correction to the loader to admit a full date. It is the kind of decision that goes unnoticed until it erases a finding.

Even so, the case also bounds which questions this design admits. Two cuts describe states, not trajectories: the suspension episode lasted three years inside the window and here it is visible only by its tail. Anyone wanting to study the suspension needs an annual series, which this design does not deliver.

Part III · What to do with this evidence

11. What this evidence means, and what it requires before use

Table 10. Legitimate uses of each finding and the additional evidence they require

finding	legitimate use	what would be needed to go further
Level of the statutory floor against the medians	Placing Peru within the reference set; ruling out that the statutory floor is low	Data on compliance and on effective take-up of the entitlement
Holiday / leave composition	Choosing which instrument to debate; anticipating synchrony effects as against individual effects	Evidence on effective placement and on bargaining in practice
Difference from the existing indices	Correcting the diagnosis when an international comparison is cited	Recomputation of the other index declaring its unit, which its publication does not permit
Change between cuts	None yet, other than as an indication	Per-cell provenance status in the export

Source: authors' calculations.

No row of this exhibit supports a recommendation about the level of the statutory floor. The recommendation the evidence does support is procedural: **change how the diagnosis is made before debating how much to reform.**

11.1. What a decision-maker would do differently

Three operational consequences, ordered by how much they depend on this work and how much on evidence that does not yet exist.

First, and the only one that follows directly from the data: stop citing the number of holidays in the calendar. It is the figure that dominates public debate and it overstates rest, because it counts days falling on weekly rest. The difference between the calendar and the holidays that actually release a working day is not marginal and varies across jurisdictions, so **using the calendar also alters the ordering between countries**, not just the level. Replacing it with the effective figure costs nothing and changes the conversation.

Second: separate the two instruments before setting the objective. If what is sought is synchrony — concentrated consumption, family coordination, a calendar effect — the instrument is the public holiday, and the literature on the social multiplier of leisure suggests that its value rises with simultaneity. If what is sought is individual rest and recovery, the instrument is annual leave, whose effect on hours worked is estimated and close to one for one. **A debate that argues over «more days» without saying which of the two is discussing two different policies under one name.**

Third, and this one bounds the previous two: for Peru, the margin of the statutory floor may not be where the problem lies. This work shows that the entitlement the law grants is above both reference medians. That does **not** imply that effective rest is: the statutory floor describes what a worker can demand, not what they obtain, and in an economy with high informality the fraction of the employed population that floor reaches is an open question this dataset does not answer. The practical consequence is concrete: **before moving the floor, establish whether the binding constraint is the statute or its enforcement**, because the two have different instruments and only one of them is fixed by legislating.

None of the three recommends raising or lowering the level. That judgement requires an optimality framework which, as the section on the literature documents, does not yet exist for this problem.

Annexes

Annex A. How this measurement was produced, and what the record establishes

On a stratified sample of units from the set a **double coding** was run: a second capture of the same statutes, to measure agreement between readings. The sample was chosen so that each unit stressed a different part of the construct.

The procedure requires that second reading to be made without sight of the first and by a different hand. **The record establishes this for some of the pairs and not for all**, and the reserve is developed at the close of this annex. It is said here, next to the statement, because a procedure described without its reserve reads as verified.

Its results are not published and are kept in the project's internal documentation. They are excluded in full — rates, second readings and the cross-checking program — and the reason is in `EXCLUSIONES.md`.

This mention must not be read as a claim of agreement. A reliability exercise cited without its figure is a record that the procedure was run, and nothing more: it does not say the agreement was high or low. What can be said here is what the exercise measures and what it does not — **reproducibility, not correctness**: two readers can coincide in the same error, and coinciding does not make a value true. And it describes the sample, not the set: **it is not extrapolated** to the 47 units.

What does travel in this package is provenance cell by cell, which is the check an external reader can make without believing us: the verification appendix walks every number with its quoted passage, and the tabular files carry the status and source level of each cut.

The capture of the statutes, the adversarial review of the schema, the audit against the prior source and the blind double coding were carried out by artificial intelligence assistants, under a versioned measurement protocol frozen by hash, with human adjudication of every construct decision. **As a rule**, whoever captured a unit was not the one who audited it, and whoever implemented a part of the schema was not the one who attacked it. The rule is stated with that reserve because it did not hold in every case: in some of the double-coded units both readings were recorded under the same identifier, so the separation of hands is **asserted and not evidenced** in our own record. It is said here because a property of the procedure stated without exceptions reads as verified, and this one is not.

Annex B. Limitations

1. **We do not claim to be more accurate** than the prior source: we claim to be auditable and reproducible to the extent of the reliability annex.
2. **Unverified absence is not absence**, and in leave the rule has now been applied. A delta of zero between cuts may mean there was no reform or that none was sought, and the data distinguish the two: 41 cells of the older cut have their no-change sought and confirmed against an official index or a located instrument, and 0 remain assumed. In holidays the distinction is still live and is read unit by unit in the last column of the change exhibit.
3. **No total rest figure including weekly rest is published**, because the week actually worked is a fact of the contract and is not captured.
4. **Holidays whose date is not resolvable are counted as if they released** and substitution rules are not captured: the two biases run in opposite directions and the calculator's output quantifies them.
5. **The change exhibit does not separate provenance** until the export emits the per-cell status.
6. **The verification appendix does not carry the verbatim citation for every cell.**
7. This work describes **law in force, not practice**: it does not measure compliance, take-up or effects.

Data and materials availability

The dataset is published in open tabular format under a CC BY 4.0 licence, with a manifest carrying the hash of each file, the version of the measurement protocol and the revision identifier. It is accompanied by a country appendix with its sources and decisions, a verification appendix written for a reader without access to the repository, and the versioned protocol.

To cite a specific row: follow its jurisdiction code to the evidence file and **cite the statute**.

Note on the figures in this document

No figure in this document is typed: they all enter by query against the dataset, and an executable gate rejects the compilation if anyone types one. The same holds for the chart, which is drawn from the same queries that feed the exhibits and cannot desynchronise from them.

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Note on the production method

The capture of the statutes, the adversarial review of the schema and the protocol, the audit against the external benchmark and the blind double coding were carried out by **artificial-intelligence assistants**, under a versioned measurement protocol frozen by hash, with human adjudication of every construct decision.

The roles were distinct and worth distinguishing, because the separation is part of the design: **as a rule**, whoever captured a unit did not audit it, and whoever implemented a part of the schema did not attack it. It carries that reserve because it did not hold in every case, and Annex A says where.

The double coding is declared blind, and in some of the pairs that blindness is **asserted and not evidenced** by our own record. **Its figures are not published** —they are kept in the project’s internal documentation, and the reason is in `EXCLUSIONES.md`— so this mention must not be read as a claim of agreement. What is published from that exercise are the corrections it prompted, including one that went against the second reader.

No models or internal identifiers are named: a working alias means nothing outside the project, and a model name ages in months. What is on the record, and what makes the process auditable, are the protocol, its frozen versions and the full revision history.

Colophon

Generated automatically. **Do not edit by hand:** any correction goes into the source data and the document is regenerated. Two documents from the same package share these five values; if they differ, they do not belong to the same compilation.

Protocol	v2.27
Protocol hash	bb9db022dec2e48c...
Database hash	44ddb8105c321371...
Generator hash	71eb599cb03da0a1...
Published version	v1.0
